



NEW MEXICO ASSOCIATION OF REALTORS® — 2025
EARNEST MONEY - CONSENT TO DISTRIBUTION



Relating to the Purchase Agreement dated _____ between the parties
_____ ("Buyer")
and _____ ("Seller") on the
following Property: _____
Address (Street, City, State, Zip Code) _____

Legal description _____

Name of Title Company or Other Entity Holding Earnest Money: _____

Total Earnest Money Being Held \$ _____

BUYER AND SELLER AGREE THAT EARNEST MONEY WILL BE DISTRIBUTED AS FOLLOWS:

BUYER	SELLER	SELLER'S BROKER	BUYER'S BROKER
\$ _____	\$ _____	\$ _____	\$ _____

EXPENSES DEDUCTED FROM EARNEST MONEY:

- Only list below those expenses that are to be deducted from the Earnest Money and paid by the title company from the Earnest Money.
- Expenses can only be deducted from the Earnest Money if the party responsible for paying the expense is receiving Earnest Money. If a party is responsible for an expense, but the Earnest Money to be received by the party is insufficient to cover the expense, the title company is authorized to send the funds available to the service provider(s) in the order listed until such funds are exhausted.

COMPANY/ENTITY	TO BE PAID BY SELLER AND AMOUNT	TO BE PAID BY BUYER AND AMOUNT
1.	\$ _____	\$ _____
2.	\$ _____	\$ _____
3.	\$ _____	\$ _____
4.	\$ _____	\$ _____
5.	\$ _____	\$ _____
6.	\$ _____	\$ _____

TOTAL EXPENSES

\$ _____

\$ _____

REMAINDER OF EARNEST MONEY

\$ _____

\$ _____

REMAINDER OF EARNEST MONEY TO BE DISBURSED AS FOLLOWS:

BUYER	SELLER	SELLER'S BROKER	BUYER'S BROKER
\$ _____	\$ _____	\$ _____	\$ _____

In the event the Buyer and Seller cannot agree to the distribution of the Earnest Money, the Holder of the Earnest Money may choose to file an **Interpleader** action. **Interpleader** is a legal proceeding whereby the Holder of the Earnest Money names Buyer and Seller as defendants and deposits the funds in question with an appropriate court. Once the funds have been disbursed by final determination of the court, the prevailing party and Holder of the Earnest Money shall be entitled to recover any additional court costs and reasonable attorneys' fees related to the dispute from the non-prevailing party. Parties to all Earnest Money disputes are urged to review NMAR Form 2310 – Information Sheet - Earnest Money Dispute, and to consult an attorney to understand their rights and obligations.

Lone Wolf



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BUYER(S)



Buyer Signature	Printed Name	Date	Time
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Buyer Signature	Printed Name	Date	Time
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If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum

BUYER'S BROKER(S)

Buyer's Broker Name

Buyer's Broker's Qualifying Broker's Name	Buyer's Broker's Qualifying Broker's NMREC License No.
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Buyer's Brokerage Firm	Office Phone	Fax
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Buyer's Brokerage Address	City	State	Zip Code
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Email Address	Cell Number	Broker ☐ is ☐ is not a REALTOR®
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SELLER(S)

Seller Signature	Printed Name	Date	Time
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Seller Signature	Printed Name	Date	Time
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If additional signature lines are needed, please use NMAR Form 1150 – Signature Addendum

SELLER'S BROKER(S)

Seller's Broker Name

Seller's Broker's Qualifying Broker's Name	Seller's Broker's Qualifying Broker's NMREC License No.
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Seller's Brokerage Firm	Office Phone	Fax
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Seller's Brokerage Address	City	State	Zip Code
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Email Address	Cell Number	Broker ☐ is ☐ is not a REALTOR®
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